

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel Pro Hac Vice to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Thomas Scott Thompson declares facts under penalty of perjury to support the application under CRC Rule 9.40. Counsel Thompson is an attorney licensed to practice in the District of Columbia, the District of Columbia Court of Appeals, and before the following federal courts: United States Supreme Court, United Court of Appeals, for the First, Second, Third, Fourth, Fifth, Sixth, Eighth, Ninth, Tenth, Eleventh, District of Columbia, and Federal Circuits, the Northern District of Illinois, Western District of Texas, and the Eastern District of Michigan. He is employed by Mintz Levin's Washington D.C. office. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted Pro Hac Vice.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

#### Ruling

No timely opposition was filed with the Court. Defendant's motion is granted. Thomas Scott Thompson is admitted to appear as Counsel Pro Hac Vice for the duration of this case. Defendants Counsel are ordered to prepare and e-file a conforming order to signed by the Court within five days of the date of this hearing. No appearance is required at the hearing on March 5, 2026.

**13. 9:00 AM CASE NUMBER: C25-02065**  
**CASE NAME: TRISTAN HOLLIS VS. DOES 1 TO 50**  
**\*HEARING ON MINOR'S COMPROMISE RE: TRISTAN HOLLIS**  
**FILED BY: HOLLIS, TRISTAN**  
**\*TENTATIVE RULING:\***

#### Summary

Petitioner Tristan Hollis by and through his Guardian Ad Litem Heather Hollis's Petition for Approval of Compromise of Minor Tristan Hollis's ("Minor") Claim ("Petition"), filed on September 19, 2025, is granted, as set forth below.

#### Background

On July 18, 2025, Petitioner Heather Hollis, parent and guardian ad litem for her son, Tristan Hollis filed a claim against Defendant Kevin Thomas Meyer and Does 1-50.

Petitioner has now filed a Petition through counsel Aimee Kirby, to compromise the claim that Minor had against Defendant related to an accident that occurred on February 25, 2025 in Bay Point, California. In that accident, Minor sustained a mild Concussion and Emotional Distress. Petitioner represents that Minor has received treatment at John Muir Health. He has fully recovered and there

are no permanent injuries. The Defendant offered settlement in the amount of \$25,000, of which \$14,609.50 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$ 10,390.50 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees and costs incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

### **Ruling**

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on September 19, 2025. The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Guardian ad Litem is required (by zoom is acceptable), in order to assure that she understands that (1) if subsequent events show that the injuries have not fully healed, she cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when she turns 18, unless the court orders otherwise.

**14. 9:00 AM CASE NUMBER: C25-02898**  
**CASE NAME: KERRY MCLANE VS. MERCEDES-BENZ USA, LLC, A DELAWARE LIMITED LIABILITY COMPANY**

**\*MOTION/PETITION TO COMPEL ARBITRATION**

**FILED BY: MERCEDES-BENZ USA, LLC, A DELAWARE LIMITED LIABILITY COMPANY**

**\*TENTATIVE RULING:\***

Defendant, Mercedes-Benz USA, LLC ("defendant" or "Mercedes"), moves the Court under both the California Arbitration Act and the Federal Arbitration Act to compel plaintiff to arbitrate the claims set forth in plaintiff's complaint, and to stay this action pending the outcome of arbitration.

The motion is **granted**. Parties shall submit the matter to arbitration. This proceeding is hereby stayed. **The Court sets a case management conference on September 8, 2026, at 8:30 a.m.** for a status update on arbitration.

### **Background**

Plaintiff Kerry Mclane brought suit on October 7, 2025, alleging that on December 31, 2024, she leased a 2025 Mercedes-Benz GLC-Class and the vehicle was defective. (See Complaint, ¶18.) The complaint asserts two causes of action under the Song-Beverly Act, one for breach of the implied warranty of merchantability and one for breach of the express warranty.

In response to the complaint, defendant filed this motion to compel arbitration based on provisions found in the Motor Vehicle Lease Agreement plaintiff signed with Mercedes Benz of Walnut Creek, the dealer from which plaintiff leased the vehicle. In support of its motion, defendant provides a declaration from counsel that attaches plaintiff's complaint as well as a signed copy of the lease agreement. (Although counsel's declaration incorrectly describes the lease, the Court has overlooked the apparent typographical error based on the same document being attached to opposing counsel's declaration in support of the opposition).

The arbitration agreement contained in the lease agreement states, under "Important